

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

**Non-Execution Application
In
Complaint No. CC006000000056346**

Jagdish Mishra

.... Complainants

Versus

M/s. Nirmal Lifestyle (Kalyan) Private Limited

..... Respondent

Project Registration No.P51700005583

Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA

None appeared for the complainant.

Mrs. Vaishali Mohite appeared for the respondent.

ORDER

(27th February, 2020)

1. The complainant above named has filed this application for non-execution of order dated 1st March, 2018 passed by the MahaRERA in the aforesaid complaint filed with respect to project registered by the respondent with MahaRERA. By the said order the complaint was disposed of by way of filing the consent terms arrived at between both the parties in view of the amicable settlement, whereby the respondent has agreed to pay the interest for delayed possession as per the provisions of section-18 of the Real Estate (Regulation & Development) Act, 2016 from the date mentioned in the said consent terms.
2. This application is heard finally today. During the hearing the complainant remained absent, though the notice for hearing has been duly served upon him.
3. However, during the hearing the respondent informed MahaRERA that as on date an amount of Rs. 3,81,958/- is payable to the complainant towards the interest for the



delayed possession out of which a Demand Draft of Rs.81,958/ is ready with them and same shall be handed to the complainant. The balance amount of Rs. 3,00,000/- will be paid to the complainant within a period of three months. The respondent has submitted a chart showing the details of payment done to the complainant and the required time for making balance payment on record of MahaRERA. The same is taken on record and annexed to this order as Exhibit-A.

4. In view of the said statement cum undertaking submitted by the respondent, the execution application stands disposed of. Any further non-compliance by the respondent will be viewed seriously by the MahaRERA.



(Dr.Vijay Satbir Singh)
Member – 1/MahaRERA